

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000122-2026

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

David Rivera-Jr

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CASE INFORMATION

<u>Judge Assigned:</u> Shaffer, Zachary C.	<u>Date Filed:</u> 01/09/2026	<u>Initiation Date:</u> 01/09/2026
<u>OTN:</u> U 323575-0	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0001158-2025
<u>Initial Issuing Authority:</u> Charles Hayden	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Aurilia, Nicholas D.	
<u>Complaint/Citation No.:</u> 2408043511-0001158	<u>Incident Number:</u> 2408043511	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0001158-2025	
District Control Number	2408043511	
Originating Document Number	2408043511-0001158	

RELATED CASES

<u>Related Docket No</u>	<u>Related Case Caption</u>	<u>Related Court</u>	<u>Association Reason</u>
Joined Codefendant Cases			
CP-51-CR-0003889-2025	Comm. v. Fahy-Grover, David	CP-01-51-Crim	CO-DEF ASSOCIATED CASES
CP-51-CR-0000144-2026	Comm. v. Raphael, Layliany	CP-01-51-Crim	CO-DEF ASSOCIATED CASES

STATUS INFORMATION

<u>Case Status:</u> Active	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 01/19/2025
	01/22/2026	Awaiting Pre-Trial Conference	
	01/09/2026	Awaiting Filing of Information	
			<u>Complaint Date:</u> 01/19/2025

CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	01/22/2026	11:00 am	1104	Trial Commissioner Quinn O'Brien	Scheduled
Pre-Trial Conference	02/12/2026	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Pretrial Bring Back	05/28/2026	9:00 am	905	Judge Zachary C. Shaffer	Continued
Pretrial Bring Back	07/30/2026	9:00 am	905	Judge Zachary C. Shaffer	Scheduled

DEFENDANT INFORMATION

<u>Date Of Birth:</u>	11/17/2004	<u>City/State/Zip:</u>	Philadelphia, PA 19135
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CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Rivera-Jr, David

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BAIL INFORMATION

Rivera-Jr, David

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	01/19/2025	Monetary	Municipal Court	10.00%	\$500,000.00
Decrease Bail Amount	02/13/2025	Monetary	Municipal Court	10.00%	\$75,000.00
Set	01/09/2026	Monetary	Common Pleas	10.00%	\$75,000.00
<u>Surety Type</u>	<u>Surety Name</u>	<u>Posting Status</u>	<u>Posting Date</u>	<u>Security Type</u>	<u>Security Amt</u>
Third Party	Rivera, David	Modified	02/13/2025	Cash	\$7,500.00
Third Party	Rivera, David	Posted	01/09/2026	Cash	\$7,500.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
1	1		18 § 2702	Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	12/15/2024	U 323575-0
2	13		18 § 3701	Robbery-Threat Immed Ser Injury	12/15/2024	U 323575-0
3	3		18 § 903	Conspiracy	12/15/2024	U 323575-0
4	4		18 § 4952	Intim Wit/Vit - Refrain From Report	12/15/2024	U 323575-0
5	5		18 § 6106	Firearms Not To Be Carried W/O License	12/15/2024	U 323575-0
6	6		18 § 6108	Carry Firearms Public In Phila	12/15/2024	U 323575-0
7	7		18 § 3921	Theft By Unlaw Taking-Movable Prop	12/15/2024	U 323575-0
8	8		18 § 3925	Receiving Stolen Property	12/15/2024	U 323575-0
9	9		18 § 907	Poss Instrument Of Crime W/Int	12/15/2024	U 323575-0
10	10		18 § 2706	Terroristic Threats W/ Int To Terrorize Another	12/15/2024	U 323575-0
11	11		18 § 2701	Simple Assault	12/15/2024	U 323575-0
12	12		18 § 2705	Recklessly Endangering Another Person	12/15/2024	U 323575-0
99,999	2		18 § 3701	Robbery-Inflct Serious Bodily Injury	12/15/2024	U 323575-0

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	01/08/2026	Not Final
1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Held for Court	18 § 2702
3 / Conspiracy	Held for Court	18 § 903

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<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		
4 / Intim Wit/Vit - Refrain From Report	Held for Court	18 § 4952
5 / Firearms Not To Be Carried W/O License	Held for Court	18 § 6106
6 / Carry Firearms Public In Phila	Held for Court	18 § 6108
7 / Theft By Unlaw Taking-Movable Prop	Held for Court	18 § 3921
8 / Receiving Stolen Property	Held for Court	18 § 3925
9 / Poss Instrument Of Crime W/Int	Held for Court	18 § 907
10 / Terroristic Threats W/ Int To Terrorize Another	Held for Court	18 § 2706
11 / Simple Assault	Held for Court	18 § 2701
12 / Recklessly Endangering Another Person	Held for Court	18 § 2705
99,999 / Robbery-InFLICT Serious Bodily Injury	Held for Court	18 § 3701

Proceed to Court Defendant Was Not Present

Information Filed	01/16/2026	Not Final
1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Proceed to Court	18 § 2702
2 / Robbery-Threat Immed Ser Injury	Replacement by Information	18 § 3701
3 / Conspiracy	Proceed to Court	18 § 903
4 / Intim Wit/Vit - Refrain From Report	Proceed to Court	18 § 4952
5 / Firearms Not To Be Carried W/O License	Proceed to Court	18 § 6106
6 / Carry Firearms Public In Phila	Proceed to Court	18 § 6108
7 / Theft By Unlaw Taking-Movable Prop	Proceed to Court	18 § 3921
8 / Receiving Stolen Property	Proceed to Court	18 § 3925
9 / Poss Instrument Of Crime W/Int	Proceed to Court	18 § 907
10 / Terroristic Threats W/ Int To Terrorize Another	Proceed to Court	18 § 2706
11 / Simple Assault	Proceed to Court	18 § 2701
12 / Recklessly Endangering Another Person	Proceed to Court	18 § 2705
99,999 / Robbery-InFLICT Serious Bodily Injury	Charge Changed	18 § 3701
Replaced by 18 § 3701 §§ A1II, Robbery-Threat Immed Ser Injury		

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COMMONWEALTH INFORMATION

Name: Philadelphia County District Attorney's
Office
District Attorney

Supreme Court No:

Phone Number(s):
215-686-8000 (Phone)

Address:

3 South Penn Square
Philadelphia, PA 19107

ATTORNEY INFORMATION

Name: Michael Jay Diamondstein
Private

Supreme Court No: 078973

Rep. Status: Active

Phone Number(s):
215-940-2700 (Phone)

Address:

Michael J Diamondstein Pc
1500 Jfk Blvd Ste 1815
Philadelphia, PA 19102-1532

Representing: Rivera-Jr, David

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	01/09/2026		Court of Common Pleas - Philadelphia County
Held for Court			
3	01/09/2026		Hayden, Charles
Bail Set - Rivera-Jr, David			
4	01/09/2026		Rivera, David
Bail Posted - Rivera-Jr, David			
1	01/16/2026		Krasner, Larry
Information Filed			
1	01/22/2026		Diamondstein, Michael Jay
Entry of Appearance			
2	01/22/2026		Diamondstein, Michael Jay
Bail Assignment			
5	01/22/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	01/22/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
7	01/22/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
8	01/22/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	01/29/2026		Diamondstein, Michael Jay
Omnibus Pre-Trial Motion			
1	02/12/2026		Shaffer, Zachary C.
Defense Request For Continuance For Further Investigation			
4	02/12/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	05/28/2026		Shaffer, Zachary C.
Defense Request For Continuance For Further Investigation			
5	05/28/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			

CASE FINANCIAL INFORMATION

Last Payment Date: 01/30/2026

Total of Last Payment: -\$15.00

Rivera-Jr, David	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary</u>	<u>Balance</u>
Defendant				<u>Payments</u>	
Costs/Fees					
Bail Bond (Philadelphia)	\$10.00	\$0.00	(\$10.00)	\$0.00	\$0.00
Motion Filing Fee - Omnibus (Philadelphia)	\$15.00	(\$15.00)	\$0.00	\$0.00	\$0.00
Costs/Fees Totals:	\$25.00	(\$15.00)	(\$10.00)	\$0.00	\$0.00
Grand Totals:	\$25.00	(\$15.00)	(\$10.00)	\$0.00	\$0.00

** - Indicates assessment is subrogated